



SPONSOR: Rep. Gorman & Sen. Pinkney
Reps. Burns, Heffernan, Morrison, Neal, Wilson-Anton

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 76

AN ACT TO AMEND TITLE 11 RELATING TO ARREST BY A PRIVATE PERSON.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 2514, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 2514. Arrest without warrant.

4 The arrest of a person may be lawfully made by any peace ~~officer or a private person,~~ officer, without a warrant,
5 upon reasonable information that the accused stands charged in the courts of a state with a crime punishable by death or
6 imprisonment for a term exceeding 1 year, but when so arrested the accused shall be taken before a judge or justice of the
7 peace with all practicable speed and complaint shall be made against the accused under oath setting forth the ground for the
8 arrest as in § 2513 of this title, and thereafter the accused's answer shall be heard as if the accused had been arrested on a
9 warrant.

SYNOPSIS

This Act eliminates authorization for a warrantless arrest by a private person in the case of an individual accused in the courts of another state of a felony.